

- File No.: EXP202206303

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: The Spanish Agency for Data Protection became aware through a complaint of certain facts that could violate data protection legislation. On June 1, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD) to investigate the following facts:

The complainant is a woman (not specified, but apparently of legal age) who states that on the pornographic content website ***URL.1, there is a published image of her urinating in the street. She does not know who the author of the publication is or how long it has been published, but she says that Google indexes it when performing image searches with criteria such as "girls peeing in the street." She provides screenshots regarding this, which reflect the image referred to by the complainant, who fully identifies herself (name, surname, and ID number) and provides an email and contact phone number.

She states that she has contacted both ***URL.1 (not substantiated, but it can be assumed that through a form to report content) and Google (provides copies of two messages dated May 25, 2022, from Google denying the removal of links from its search results page).

It is verified that the image appears published on ***URL.1 (inserted in a mosaic of images constructed as a single object) and on a URL of the domain bing.net, related to the hosting service provided by Microsoft. It is unknown who uses the service to host the image or if it is connected to ***URL.1. These two publications have been confirmed based on Google's negative responses, which refer to these links.

URL.1 is a pornographic content website that does not identify its owner but can be presumed to be located in the U.S., considering references to the DMCA. Specifically, and related to this regulation, a contact form is offered through which abuses can be reported, which could serve as a soft avenue (URL.2). Additionally, the email address ***EMAIL.1 is provided in its brief terms of service (***URL.3).

URLS WHERE THE IMAGE IS CONFIRMED TO BE PUBLISHED:

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- ***URL.4
- ***URL.5

Relevant documentation provided with the complaint:

- Copy of an email sent by ***EMAIL.2 to the complainant, dated May 25, 2022, stating that no content has been found that should be removed from the search results of the following pages:

***URL.6

***URL.7

- Copy of an email sent by ***EMAIL.2 to the complainant, dated May 25, 2022, stating that no content has been found that should be removed from the search results of the following pages:

***URL.4

***URL.8

- Screenshot from a mobile terminal with the claimed photograph, showing in the browser URL "google.com/search?q=[...]"

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

Relevant documentation provided by the complainant:

On June 8, 2022, it was verified that, according to whois records of the domain ***URL.1, its registrar is NAMECHEAP INC.

It was verified that EDPO is the representative in the EU of NAMECHEAP INC.

On June 3, 2022, this Agency sent requests for content removal to MICROSOFT IRELAND OPERATIONS LIMITED (through MICROSOFT IBÉRICA S.R.L.) and to GOOGLE LLC (through GOOGLE SPAIN S.L.)

On June 8, 2022, it was verified that:

1. On the URL:

***URL.9 the reported photograph is present.

2. On the URL ***URL.10 there is a photograph that is different from the one reported.

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3/7

3.

The reported photograph is also available at the URL ***URL.4.

On June 8, 2022, it was verified that, following the submission of the content removal form on the website ***URL.2, the previous photograph is no longer published at the URL ***URL.11.

On June 9, 2022, it was verified that, following the submission of the removal order, the previous photograph is no longer accessible at the URL ***URL.12.

On July 4, 2022, it was verified that, following the submission of the removal order, the previous photograph is no longer published at the URL ***URL.4.

As a result of the information request made by the inspection, on February 22, 2023, EDPO sent the following information and statements to this Agency:

That the registrant of the domain ***URL.1 is:

A.A.A..

***LOCALIDAD.

Indonesia

Email: ***EMAIL.3

Phone: ***TELÉFONO.1

As a result of the information request made by the inspection, on February 28, 2023, MICROSOFT IRELAND sent the following information and statements to this Agency via email:

“[...]

After discussing with our law enforcement and safety teams, I would like to inform you that requests for customer data must comply with local laws. As such, Microsoft can only comply with this request on presentation of a court order (or equivalent).

We would be grateful if you could communicate with this email address (***EMAIL.4) going forward, on other cases before the AEPD.

[...]”

From its unofficial translation from English:

“[...]

After discussing with our legal and safety teams, I would like to inform you that requests for customer data must comply with local laws. As such, Microsoft can only satisfy this request upon presentation of a court order (or equivalent).

We would appreciate it if you could communicate with us at this email address (***EMAIL.4) in the future regarding other matters before the AEPD.

[...]"

On March 17, 2023, a form requesting information was sent to the platform ***URL.1 via the URL ***URL.2. On the same date, an email was sent to ***EMAIL.1 and ***EMAIL.5 notifying them of the submission of the form requesting information, as well as the postal mailing of said information request.

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28001 – Madrid
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4/7

No response has been received to the email sent.

On March 17, 2023, a request for information was sent to A.A.A. via international postal mail. The shipment is marked as "in progress." No response has been received.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

Right to Erasure ("the right to be forgotten")

Article 17 of the GDPR provides the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and it is not based on another legal ground;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the controller;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

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5/7

2. When personal data has been made public and the data controller is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, with a view to informing controllers processing the personal data of the data subject's request for deletion of any

link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 could make impossible or seriously hinder the achievement of the objectives of that processing; or
- e) for the establishment, exercise, or defense of legal claims.

III

Legitimacy for Processing

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation.

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Including images that identify or make identifiable a person, as well as their name, in published videos constitutes processing of personal data and, therefore, the person doing so must rely on one of the legitimizing grounds indicated in Article 6 of the GDPR. In these cases, as in the case subject to the complaint, the usual legitimizing ground is generally consent. It is the person who uploads the personal data and images to a social network that can be viewed without any limitation who must demonstrate that they have that consent.

In order for such processing to be carried out lawfully, the provisions of Article 6.1 of the GDPR must be fulfilled, which states:

<<1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.>>.

It has been established during the investigation proceedings that the images from the video subject to this procedure had been removed.

IV

Conclusion

To identify the person who was publishing images of a woman urinating, preliminary investigative actions were carried out, as provided for in Article 67 of the LOPDGDD, which states the following:

<<1. Before the adoption of the decision to initiate proceedings, and once the complaint has been accepted for processing, if any, the Spanish Data Protection Agency may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances justifying the processing of the procedure.

The Spanish Data Protection Agency shall act in any case when it is necessary to investigate processing involving mass traffic of personal data.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and shall not exceed twelve months from the date of the decision to accept the complaint for processing or from the date of the decision to initiate it when the Spanish Data Protection Agency acts on its own initiative or as a result of communication received from the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.>>

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7/7

After conducting the investigations outlined in the Facts, the following conclusion has been reached: Regarding the content indicated in the complaint, it has been verified that it has been removed.

The registrant of the domain has been identified, but no information has been obtained regarding the person responsible for the processing of the images without legitimacy.

Thus, as it has not been possible to attribute responsibility for the processing, in accordance with the statement made by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

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